

**बिड दस्तावेज़ / Bid Document**

| बिड विवरण / Bid Details                                                                                                      |                                                                                                                                                                                                                                                                                                                             |
|------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| बिड बंद होने की तारीख/समय / Bid End Date/Time                                                                                | 12-08-2026 15:00:00                                                                                                                                                                                                                                                                                                         |
| बिड खुलने की तारीख/समय / Bid Opening Date/Time                                                                               | 12-08-2026 15:30:00                                                                                                                                                                                                                                                                                                         |
| बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)                                                  | 90 (Days)                                                                                                                                                                                                                                                                                                                   |
| मंत्रालय/राज्य का नाम / Ministry/State Name                                                                                  | Ministry Of Petroleum And Natural Gas                                                                                                                                                                                                                                                                                       |
| विभाग का नाम / Department Name                                                                                               | Na                                                                                                                                                                                                                                                                                                                          |
| संगठन का नाम / Organisation Name                                                                                             | Oil And Natural Gas Corporation Limited                                                                                                                                                                                                                                                                                     |
| कार्यालय का नाम / Office Name                                                                                                | 393010                                                                                                                                                                                                                                                                                                                      |
| शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal                                                       | HOD Email id : patel_pradip@ongc.co.in<br>Buyer Email id: desai_pinank@ongc.co.in                                                                                                                                                                                                                                           |
| वस्तु श्रेणी / Item Category                                                                                                 | Custom Bid for Services - KPI Based Job Contract for Brine Preparation at CMP, PTYS Gandhar and CMP, PTYS Ankleshwar for Three Years for Drilling Fluid Services                                                                                                                                                            |
| समान श्रेणी / Similar Category                                                                                               | <ul style="list-style-type: none"> <li>Facility Management Service- Manpower based (Version 2)</li> <li>Facility Management Service - Outcome Based</li> <li>Manpower Outsourcing Services - Minimum wage</li> </ul>                                                                                                        |
| अनुबंध अवधि / Contract Period                                                                                                | 3 Year(s)                                                                                                                                                                                                                                                                                                                   |
| एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover       | No                                                                                                                                                                                                                                                                                                                          |
| स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover | No                                                                                                                                                                                                                                                                                                                          |
| विक्रेता से मांगे गए दस्तावेज़ / Document required from seller                                                               | Experience Criteria, Certificate (Requested in ATC), Additional Doc 1 (Requested in ATC), Additional Doc 2 (Requested in ATC)<br>*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer |

| बिड विवरण/Bid Details                                                                                                                                                                                                    |                                                                                                                                                                                                                                     |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid? | No                                                                                                                                                                                                                                  |
| बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension                                                                                | 3                                                                                                                                                                                                                                   |
| दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended                                                                                                      | 7                                                                                                                                                                                                                                   |
| ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count                                                                                                                                            | 1                                                                                                                                                                                                                                   |
| बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled                                                                                                                                                                       | No                                                                                                                                                                                                                                  |
| बिड का प्रकार/Type of Bid                                                                                                                                                                                                | Two Packet Bid                                                                                                                                                                                                                      |
| तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation                                                                                        | 5 Days                                                                                                                                                                                                                              |
| Payment Timelines                                                                                                                                                                                                        | Payments shall be made to the Seller within <b>10</b> days of issue of service delivery acceptance certificate (SDAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC) |
| मूल्यांकन पद्धति/Evaluation Method                                                                                                                                                                                       | Total value wise evaluation                                                                                                                                                                                                         |
| मूल्य दर्शाने वाला वित्तीय दस्तावेज ब्रेकअप आवश्यक है / Financial Document Indicating Price Breakup Required                                                                                                             | Yes                                                                                                                                                                                                                                 |
| मध्यस्थता खंड/Arbitration Clause                                                                                                                                                                                         | No                                                                                                                                                                                                                                  |
| सुलह खंड/Mediation Clause                                                                                                                                                                                                | No                                                                                                                                                                                                                                  |

#### ईएमडी विवरण/EMD Detail

|                             |                     |
|-----------------------------|---------------------|
| एडवाइजरी बैंक/Advisory Bank | State Bank of India |
| ईएमडी राशि/EMD Amount       | 300000              |

#### ईपीबीजी विवरण /ePBG Detail

|                                         |                     |
|-----------------------------------------|---------------------|
| एडवाइजरी बैंक/Advisory Bank             | State Bank of India |
| ईपीबीजी प्रतिशत (%) /ePBG Percentage(%) | 3.00                |

ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).

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(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने है। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

**लाभार्थी /Beneficiary :**

Manager F&A, Cash and Bank  
393010, NA, Oil and Natural Gas Corporation Limited, Ministry of Petroleum and Natural Gas  
(Ongc)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

**एमआईआई अनुपालन/MII Compliance**

|                               |     |
|-------------------------------|-----|
| एमआईआई अनुपालन/MII Compliance | Yes |
|-------------------------------|-----|

**एमएसई खरीद वरीयता/MSE Purchase Preference**

|                                                                                                                                                                                                 |     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|
| एमएसई खरीद वरीयता/MSE Purchase Preference                                                                                                                                                       | Yes |
| सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$ | 15  |

**ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details**

**This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.**

**1. Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on

documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for % (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. If L-1 is not an MSE and MSE Service Provider (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band as defined in the relevant policy, then 100% order quantity will be awarded to such MSE bidder subject to acceptance of L1 bid price.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

**एक्सेल में अपलोड किए जाने की आवश्यकता /Excel Upload Required :**

Price Bid Format - [1782199969.xlsx](#)

**अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required**

**Scope of Work:**[1782199987.pdf](#)

**Payment Terms:**[1782200005.pdf](#)

**Penalties:**[1782200071.pdf](#)

**GEM Availability Report ( GAR):**[1782200103.pdf](#)

**Introduction about the project /services being proposed for procurement using custom bid functionality:**[1782200150.pdf](#)

**Any other Documents As per Specific Requirement of Buyer -2:**[1782200158.pdf](#)

**Undertaking of Competent Authority is mandatory to create Custom Bid for Services. Please download standard format document and upload:**[1782200167.pdf](#)

**Instruction To Bidder:**[1782821769.pdf](#)

**Project Experience and Qualifying Criteria Requirement:**[1782821799.pdf](#)

**Any other Documents As per Specific Requirement of Buyer -1:**[1782821824.pdf](#)

**Pre Bid Detail(s)**

| मूल्य भिन्नता खंड दस्तावेज़/Pre-Bid Date and Time | प्री-बिड स्थान/Pre-Bid Venue |
|---------------------------------------------------|------------------------------|
| 10-07-2026 16:00:00                               | DFS Section, ONGC Ankleshwar |

**Custom Bid For Services - KPI Based Job Contract For Brine Preparation At CMP, PTYS Gandhar And CMP, PTYS Ankleshwar For Three Years For Drilling Fluid Services ( 1 )**

**तकनीकी विशिष्टियाँ /Technical Specifications**

| विवरण/ Specification | मूल्य/ Values |
|----------------------|---------------|
| कोर / Core           |               |

| विवरण/ Specification                                                                            | मूल्य/ Values                                                                                                                          |
|-------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------|
| Description /Nomenclature of Service<br>Proposed for procurement using custom bid functionality | KPI Based Job Contract for Brine Preparation at CMP, PTYS Gandhar and CMP, PTYS Ankleshwar for Three Years for Drilling Fluid Services |
| Regulatory/ Statutory Compliance of Service                                                     | YES                                                                                                                                    |
| Compliance of Service to SOW, STC, SLA etc                                                      | YES                                                                                                                                    |
| एडऑन /Addon(s)                                                                                  |                                                                                                                                        |

#### क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer

|                                                                            |    |
|----------------------------------------------------------------------------|----|
| क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer | No |
|----------------------------------------------------------------------------|----|

#### अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

#### प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

| क्र.सं./S.N<br>o. | प्रेषिती/रिपोर्टिंग<br>अधिकारी /Consignee<br>Reporting/Officer | पता/Address               | Quantity                      | अतिरिक्त आवश्यकता<br>/Additional<br>Requirement |
|-------------------|----------------------------------------------------------------|---------------------------|-------------------------------|-------------------------------------------------|
| 1                 | Dheeraj                                                        | 393010,New building, ONGC | Project /<br>Lumpsum<br>Based | N/A                                             |

#### क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

##### 1. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

- Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service. If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded for percentage of 100% of total value.
- Preference to Make In India products (For bids less than 200 Crore): Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by

concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document 50%. If the bidder wants to participate for subject tender, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate.

- iii. Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name ONGC, Ankleshwar Account No. 10210868032 IFSC Code SBI N0002675 Bank Name State Bank Of India Branch address ONGC, Ankleshwar (Branch Code: 002675). Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 30 days of award of contract.
- iv. Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name ONGC, Ankleshwar Account No. 10210868032 IFSC Code SBIN0002675 Bank Name State Bank Of India Branch address ONGC, Ankleshwar (Branch Code: 002675). Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of online transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.
- v. Buyer Organization specific Integrity Pact shall have to be complied by all bidders. Bidders shall have to upload scanned copy of signed integrity pact as per Buyer organizations policy along with bid.

**vi. Power of Attorney (PoA)**

Scanned copy of original of "Power of Attorney" or authorization, or any other document consisting of adequate proof of the ability of the signatory to bind the bidder when the power of attorney is a special "Power of Attorney" relating to the specific tender of ONGC only, shall be uploaded with techno-commercial bid.

Scanned copy of the notarized true copy of the "Power of Attorney" uploaded with the techno-commercial bid shall also be accepted, if the power of attorney is a general "Power of Attorney".

However, ONGC reserves right to seek original Power of Attorney (when the power of attorney is a special "Power of Attorney " relating to the specific tender of ONGC only) / notarized true copy (when Power of Attorney is a general Power of Attorney) at any time during the processing of tender and execution of contract.

**Guidelines on issue of Power of Attorney (PoA) for authorized signatory in tender:**

Tender Process Techno-Commercial Evaluation

**1. Sole Proprietorship**

Authority to Sign PoA: The sole proprietor (the individual owner).

Can Delegate to: An employee of sole proprietor via PoA.

Documentation Needed: attested copy of Proprietorship declaration, Copy of PAN and ID of the Proprietor, GST registration of the proprietorship (if applicable)

**2. Partnership Firm**

Authority to Sign PoA: (i). By Managing Partner or (ii) By all the partners /, as the case may be, authorized as per Partnership Deed

Can Delegate to: any partner, an employee of partnership firm via PoA.

Documentation Needed: Partnership Deed and attested copy of Resolution signed by all the partners authorizing the signatory.

### 3. Limited Liability Partnership (LLP)

Authority to Sign PoA: (i) Designated Partner responsible for managing LLP's operations along with the seal/stamp of LLP, authorized for said purpose as per the LLP Agreement. or (ii) By all partners of LLP.

Can Delegate to: any partner, an employee of LLP via PoA.

Documentation Needed: Certificate of Incorporation, LLP Agreement and certified copy of resolution passed by LLP.

### 4. Private Limited or Public Limited Company

Authority to Sign PoA:

Board (authorizing Director and/or any senior employee of Company through its Board Resolution).

Can Delegate to: any employee, Director of Company via PoA

Documentation Needed: Certified copy of Board Resolution certified either by its company secretary or Directors for such purpose, Certificate of Incorporation, MOA/AOA (for verification of powers).

(Comments: \*For the Company, incorporated under Companies Act, the certified copy of Board resolution would suffice to ascertain the identity/authority of such authorized for the purpose.)

Notes:

- a. PoA to be executed on non-judicial stamp paper of appropriate value as per rules of the state of issue.
  - b. Full name, address, ID details and business designation of both the authorizing person and the person being authorized should be mentioned in the PoA.
  - c. PoA must include the specimen signature of the person being authorized.
  - d. PoA must be attested by at least two witnesses (with full names and addresses) and be notarised.
  - e. The PoA can be General PoA or tender Specific PoA
- vii. Offers not accompanied with copy of original of "Power of Attorney" or authorization, or any other document consisting of adequate proof of the ability of the signatory shall be rejected.
  - viii. Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.
  - ix. Bank Draft/ Cashier's/Banker's Cheque are not to be considered as acceptable mode for acceptance of Bid Security and/or Security Deposit.
  - x. **LANGUAGE AND SIGNING OF BID:** The bid prepared by the bidder and all correspondence and documents relating to the bid exchanged by the Bidder and the ONGC shall be written in English language. Supporting documents and printed literature furnished by the Bidder may be in another language provided they are accompanied by an accurate translation of the relevant passages in English, duly authenticated by local chamber of Commerce of bidder's country, in which case, for purposes of interpretation of the bid, the translation shall prevail.
  - xi. Dispute Resolution Mechanism mentioned attached along with GeM Bid to be followed as per ONGC guidelines. Bidders are requested to review the guidelines before participate in GeM Tender. (Copy of Dispute Resolution Mechanism is attached along with tender documents or Refer SLA clause 27)
  - xii. ONGC, at its sole discretion, may consider the documents of bidders submitted by them against any past tenders of ONGC and same are available with ONGC. However, bidder cannot have the right to challenge any decision of ONGC on considering/not considering of these documents for evaluation. Bidder shall hold continued liability of the documents submitted in the bid, since, ONGC can utilize the same for future qualification in other tenders of ONGC.

xiii. In case BG is submitted towards SD, its validity shall be valid for 39 months (i.e., Mobilization Period + Contract duration + 2 months) from the date of GeM Contract with minimum claim period of 1 month after validity.

xiv. In case of any queries for GeM Bid, bidder may contact Dealing Officer of case. The details of Dealing Officer are mentioned as under:

**Name of Dealing Officer:** Pinank Desai

**Phone Number:** 0264-6237912

**Email Id:** Desai\_Pinank@ongc.co.in

## अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main

item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

**All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.**

**For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.**

**The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:**

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

**All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.**

**This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.**

**However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.**

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

**---धन्यवाद/Thank You---**